

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
IN AND FOR THE COUNTY OF SAN MATEO**

Law and Motion Calendar
Honorable Mark A. McCannon
1050 Mission Road, South San Francisco, CA 94080
Department 2, Courtroom K
Thursday 9/17/2026 at 2:00 pm

If you intend to appear on any case on this calendar, you must give notice by 4:00 pm the court day before the hearing pursuant to California Rules of Court, Rule 3.1308(a)(1), and San Mateo County L.R. 3.403(b).

Failure to comply with notice as outlined will result in no oral presentation.

Notice of Appearance and Courtesy Copies

1. Email Dept2@SanMateoCourt.org before 4:00 pm the court day before with a copy to all parties or their counsel of record. The email must include the name of the case, the case number, and the name of the party contesting the tentative ruling **OR** call (650) 261-5102 before 4:00 pm the court day before and follow the instructions on the message.
2. Courtesy Copies: You must email a copy of any reply brief, or an Opposition to a Motion for Summary Judgment in an Unlawful Detainer matter to:
LawAndMotionReplyBriefs@SanMateoCourt.org

Day of Hearing

Appearances can be In Person or Remote. If appearing remotely by Zoom, please use your first and last name and mute your audio until your case is called. All parties must use a device with a camera if you are appearing remotely. Please login to the zoom hearing by 1:50 pm.

Remote Appearance Zoom Information

RECORDING OF A COURT PROCEEDING IS STRICTLY PROHIBITED.

<https://sanmateocourt.zoomgov.com/>

Meeting ID: 160 135 4419

Password: 845111

TO ASSIST THE COURT REPORTER, the parties are ORDERED to: (1) state their name each time they speak and only speak when directed by the Court; (2) not to interrupt the Court or anyone else; (3) speak slowly and clearly; (4) connect from a computer if at all possible, rather than a cell phone; (5) if a cell phone is absolutely necessary, the parties must be stationary and not driving or moving; (6) no speaker phones under any circumstances; (7) provide the name and citation of any cases referenced; and (8) spell all names, even common names.

Case	Title / Nature of Case
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2:00 PM LINE 1

23-CIV-06152 JOSE ROJAS REYNAGA VS. JOSE PRADO, ET AL

JOSE ROJAS REYNAGA
JOSE PRADO

HAROUT MESSRELIAN
ELISA RHEIN MARCALETTI

Defendants' Motion for Summary Judgment, or in the Alternative, Summary Adjudication

TENTATIVE RULING:

For the reasons stated below, Defendants Jose and Ana Prado's ("Defendants") Motion for Summary Judgment ("MSJ"), filed March 30, 2026, is DENIED. (Code Civ. Proc., § 437c.) Defendants' alternative Motion for Summary Adjudication ("MSA") is GRANTED IN PART and DENIED IN PART.

As to Causes of Action Nos. 1-9 and 16-18, the MSA is DENIED. As to Causes of Action Nos. 10-15, the MSA is GRANTED. As to Plaintiff's request for punitive damages, the MSA is GRANTED.

PLAINTIFF'S AUG. 24, 2026 OBJECTIONS TO EVIDENCE ARE RULED UPON AS FOLLOWS:

- Objection No. 1 is **SUSTAINED** as to statements concerning what Defendant's spouse purportedly did or said, for lack of foundation and personal knowledge. (Evid. Code, § 702.)
- Objection No. 2 is **SUSTAINED** for lack of foundation and personal knowledge. (Evid. Code, § 702.)
- Objection Nos. 3-5 are **OVERRULED**.
- Objection No. 6 is **SUSTAINED** for lack of foundation and personal knowledge. (Evid. Code, § 702.)
- Objection No. 7 is **SUSTAINED** on hearsay grounds.
- Objection Nos. 8-9 are **OVERRULED**.

DEFENDANTS' SEPT. 4, 2026 OBJECTIONS TO EVIDENCE ARE RULED UPON AS FOLLOWS:

- Objection Nos. 1-17 are **OVERRULED**. The objections go to weight rather than admissibility.
- Objection No. 18 is **SUSTAINED** as to the statement that Defendants watched Plaintiff through cameras, for lack of foundation. (Evid. Code, § 702.) The objection is otherwise **OVERRULED**.
- Objection Nos. 19-33 are **OVERRULED**. The objections largely go to weight rather than admissibility; alleged statements by Defendants, when offered against them, are not made inadmissible by the hearsay rule. (Evid. Code, § 1220.)

BACKGROUND

Plaintiff Jose Rojas Reynaga's First Amended Complaint ("FAC"), filed June 27, 2024, alleges that from approximately 2007 through 2022, Plaintiff performed gardening, landscaping, and other tasks at properties owned by Defendants Jose and Ana Prado. Plaintiff alleges that on January 7, 2022, he was injured while moving furniture for Defendants and thereafter stopped working for them. Plaintiff filed this action in 2023, alleging violations of the California Labor Code and the California Fair Employment and Housing Act ("FEHA"), among other claims. The FAC asserts 18 causes of action:

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- 1) FAILURE TO COMPENSATE FOR ALL HOURS WORKED (Lab. Code);
 - 2) FAILURE TO PAY MINIMUM WAGES (Lab. Code);
 - 3) FAILURE TO PAY OVERTIME (Lab. Code);
 - 4) FAILURE TO PROVIDE ACCURATE ITEMIZED WAGE STATEMENTS (Lab. Code);
 - 5) FAILURE TO PAY WAGES WHEN EMPLOYMENT ENDS (Lab. Code);
 - 6) FAILURE TO PAY WAGES OWED EVERY PAY PERIOD (Lab. Code);
 - 7) FAILURE TO PROVIDE REST BREAKS (Lab. Code);
 - 8) FAILURE TO PROVIDE MEAL BREAKS (Lab. Code);
 - 9) FAILURE TO REIMBURSE BUSINESS EXPENSES (Lab. Code);
 - 10) DISCRIMINATION ON THE BASIS OF DISABILITY IN VIOLATION OF FEHA;
 - 11) FAILURE TO ACCOMMODATE DISABILITY IN VIOLATION OF FEHA;
 - 12) FAILURE TO ENGAGE IN INTERACTIVE PROCESS TO DETERMINE REASONABLE ACCOMMODATION IN VIOLATION OF FEHA;
 - 13) RETALIATION IN VIOLATION OF FEHA;
 - 14) FAILURE TO PREVENT DISCRIMINATION AND RETALIATION IN VIOLATION OF FEHA;
 - 15) WRONGFUL TERMINATION IN VIOLATION OF PUBLIC POLICY;
 - 16) NEGLIGENCE PURSUANT TO LABOR CODE SECTIONS 3706 AND 6403;
 - 17) NEGLIGENCE;
 - 18) VIOLATION OF BUSINESS AND PROFESSIONS CODE SECTION 17200.

Defendants move for summary judgment or, alternatively, summary adjudication of all 18 causes of action and Plaintiff's request for punitive damages.

LEGAL STANDARD ON SUMMARY JUDGMENT/ADJUDICATION

A motion for summary judgment must be granted if the papers show no triable issue of material fact and that the moving party is entitled to judgment as a matter of law. (Code Civ. Proc., § 437c, subd. (c).) A defendant meets its initial burden by showing that one or more elements of a cause of action cannot be established or that a complete defense exists. (Id., subd. (p)(2).) If the defendant meets that burden, the burden shifts to the plaintiff to show a triable issue of material fact as to the cause of action or defense. (Ibid.) "A triable issue of material fact exists if, and only if, the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion, in accordance with the applicable standard of proof." (*Pasadena Metro Blue Line Construction Authority v. Pacific Bell Telephone Co.* (2006) 140 Cal.App.4th 658, 663.)

Because summary judgment deprives the opposing party of a trial, the evidence is viewed in the light most favorable to the opposing party, and reasonable inferences are drawn in that party's favor. (See *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 843, 856.) The Court does not weigh competing evidence or resolve credibility disputes. Its task is to determine whether a triable issue of material fact exists. (See *Assilzadeh v. California Federal Bank* (2000) 82 Cal.App.4th 399, 409.)

THE EVIDENCE RAISES A TRIABLE ISSUE AS TO WHETHER PLAINTIFF WAS AN INDEPENDENT CONTRACTOR OR EMPLOYEE; THE MSA IS THEREFORE DENIED AS TO CAUSES OF ACTION NOS. 1-9 AND 16-18

Whether a worker is an employee or an independent contractor may present a question of fact; if the material facts permit only one reasonable inference, the issue may be decided as a matter of law. (*Brose v. Union-Tribune Publishing Co.* (1986) 183 Cal.App.3d 1079, 1081; *Torres v. Reardon* (1992) 3 Cal.App.4th 831, 838.)(*Torres v. Reardon* (1992) 3 Cal.App.4th 831, 838)

In *Dynamex Operations West, Inc. v. Superior Court* (2018) 4 Cal.5th 903, 957, the California Supreme Court adopted the "ABC" test for determining employee status for claims governed by the applicable wage order. Under that test, a worker is presumed to be an employee unless the hiring entity establishes each of the following: "(A) that the worker is free from the control and direction of the hiring entity in connection with the performance of the work, both under the contract for the performance of the work and in fact; and (B) that the worker performs work that is outside the usual course of the hiring entity's business; and (C) that the worker is customarily engaged in an independently established trade, occupation, or business of the same nature as the work performed." (Ibid.) The parties proceed on the premise that the ABC test governs the classification issue presented by this motion.

Because a hiring entity's failure to satisfy any one of the three parts of the ABC test establishes employee status for purposes of the wage order, a court may consider the prongs in any order. (*Dynamex*, supra, 4 Cal.5th at p. 963.) The Court addresses all three prongs.

NO TRIABLE ISSUE AS TO PRONG B ("THAT THE WORKER PERFORMS WORK THAT IS OUTSIDE THE USUAL COURSE OF THE HIRING ENTITY'S BUSINESS")

There is no triable issue as to Prong B, which asks whether the worker performs work outside the usual course of the hiring entity's business. (*Dynamex*, supra, 4 Cal.5th at p. 959.) Defendants are retired individuals who hired Plaintiff to perform maintenance and related tasks on their own properties. Plaintiff admits that both Defendants are retired. (UMF 39, 41.) There is no evidence that Defendants operated a business involving gardening, landscaping, moving furniture, property management, property maintenance, or the other tasks Plaintiff performed. Defendants were maintaining their own properties rather than operating a business in which Plaintiff's services formed part of the usual course. Defendants therefore satisfy Prong B.

NO TRIABLE ISSUE AS TO PRONG C ("THAT THE WORKER IS CUSTOMARILY ENGAGED IN AN INDEPENDENTLY ESTABLISHED TRADE, OCCUPATION, OR BUSINESS OF THE SAME NATURE AS THE WORK PERFORMED")

There is no triable issue as to Prong C. The record shows that Plaintiff operated an independent gardening and landscaping business, including during the final approximately two-year period in which Defendants were his only clients. *Dynamex* identifies facts such as advertising, offering services to other customers, and other steps demonstrating an independently established business as relevant to Prong C. (*Dynamex*, supra, 4 Cal.5th at pp. 962-963.) Here, Plaintiff operated "GENERAL GARDENING SERVICES" for approximately 17 years. (Plt.'s Decl., ¶ 3.) He previously had multiple customers; used business letterhead and invoices identifying Defendants as "Customers"; maintained a business address; used business cards and flyers; advertised on his truck; supplied his own tools and equipment; and hired, negotiated pay for, and paid his own workers or helpers. (See Plt.'s Decl., ¶ 3; Plt.'s Dep. Tr. at 13-17, 19, 25-27, 39, 74, 76-77, 80, 104; UMF 11-12, 24; Plt.'s responses to SROGs 32, 34 & 39.)

Plaintiff also testified that he continued operating under his business name through the final day he worked for Defendants. (Plt.'s Dep. Tr. at 39.)

The record differs from *Garcia v. Border Transportation Group, LLC* (2018) 28 Cal.App.5th 558, 570, where the hiring entity failed to show sufficiently that the worker was actually engaged in an independently established business. Here, the evidence establishes an existing business through the date of Plaintiff's injury. Defendants therefore satisfy Prong C.

THE EVIDENCE RAISES A TRIABLE ISSUE AS TO PRONG A ("THAT THE WORKER IS FREE FROM THE CONTROL AND DIRECTION OF THE HIRING ENTITY IN CONNECTION WITH THE PERFORMANCE OF THE WORK, BOTH UNDER THE CONTRACT FOR THE PERFORMANCE OF THE WORK AND IN FACT")

Prong A presents the closest issue because portions of Plaintiff's testimony concerning "control and direction" conflict with other portions of the record. On one hand, Plaintiff testified that Defendants generally did not determine the manner in which he performed tasks; rather, he decided how to perform the work, and Defendants reviewed the completed work.

Q: When you did projects at the Prados, how did they supervise you?

A. They would supervise me. When I had finished my job, when I told them I had finished my job, they would go over and check to see how everything was.

Q. So they assigned you a job, and then you had to figure out how to do it, and then afterwards they checked the work?

A. That is right.

This testimony weighs strongly against Plaintiff's contention that Defendants controlled the manner in which he performed his work. Other evidence also supports independent-contractor status:

- Plaintiff operated his own business the entire time he worked for Defendants;
- Plaintiff determined or negotiated the price for each job. (Plt.'s Dep. Tr. at 15-16, 19.)
- Plaintiff testified that he determined how to complete each job and Defendants reviewed the completed work. (Plt.'s Dep. Tr. at 80.)
- When helpers were needed, Plaintiff found them, negotiated their pay, and paid them directly; Defendants did not pay them. (Plt.'s Dep. Tr. at 16-17, 26-27, 80; Plt.'s response to SROG 34.) Plaintiff referred to those helpers as "my workers."
- After each job was completed, Plaintiff prepared an invoice on his business' letterhead and sent the invoice to Defendants for payment;
- Plaintiff supplied the tools and materials and retained his tools after he stopped working for Defendants. (Plt.'s Dep. Tr. at 78; Plt.'s Decl., ¶ 3.)

That evidence is strongly indicative of an independent-contractor relationship.

On the other hand, Plaintiff points to evidence supporting greater control by Defendants:

- Plaintiff states that Defendants determined his schedule, including the days and hours he worked. (Plt.'s Dep. Tr. at 14; Plt.'s Decl., ¶ 7.)
and they decided how much time I worked.")
- Plaintiff states that Defendants sometimes required him to work on days he considered "off days," under threat of losing the work. (Plt.'s Decl., ¶¶ 7-8, 25; Plt.'s Dep. Tr. at 82.)
- Plaintiff also testified that, under threat of losing his job, he performed tasks outside what he considered the ordinary scope of his gardening business, including cleaning horse stalls, moving furniture, making purchases, assembling equipment and displays, and washing cars. (See Plt.'s Dep. Tr. at 14-15, 25-26, 74, 76-77; Plt.'s responses to SROGs 32 & 39; Plt.'s Decl., ¶¶ 9-10.)
- Most significantly for the injury at issue, Plaintiff testified that Ana Prado instructed him to move a heavy couch on a day he otherwise would not have worked and restricted him to one helper despite his request for additional help. (Plt.'s Dep. Tr. at 56-57, 79, 82, 86-88; Plt.'s Decl., ¶¶ 24-25.)

The evidence concerning control therefore conflicts. Although portions of Plaintiff's testimony may be difficult to reconcile with the evidence that he hired and paid his own helpers, the Court may not resolve those credibility questions on summary judgment.

"I had no control over [Plaintiff's] schedule or any input into who he hired as General Garden Service's employees."

Defendants deny controlling Plaintiff's schedule or the workers he hired. (Ana & Jose Prado Decls., ¶ 10.) The direct conflict between that evidence and Plaintiff's account creates a triable issue.

On summary judgment, the Court may not reject Plaintiff's testimony merely because Defendants' evidence appears more persuasive. Credibility determinations are for the trier of fact.

Viewing the evidence in the light most favorable to Plaintiff and drawing reasonable inferences in his favor, the Court concludes that a triable issue exists as to Prong A of the ABC test. Accordingly, a triable issue remains as to whether Plaintiff was an employee or an independent contractor.

THE MSA IS GRANTED AS TO CAUSES OF ACTION NOS. 10-15 (FEHA-BASED CLAIMS) BECAUSE THE EVIDENCE DOES NOT RAISE A TRIABLE ISSUE THAT DEFENDANTS REGULARLY EMPLOYED FIVE OR MORE PERSONS

FEHA defines an "employer," as relevant here, to include a person "regularly employing five or more persons." (Gov. Code, § 12926, subd. (d).) The Supreme Court has recognized that FEHA's enforcement provisions for discrimination claims generally apply only to employers meeting that threshold. (*Jennings v. Marralle* (1994) 8 Cal.4th 121, 130.) The implementing regulation defines "regularly employing" to include employing five or more individuals for any part of the day on which the alleged unlawful conduct occurred or employing five or more employees on a regular basis. (Cal. Code Regs., tit. 2, § 11008.) Cal. Code Regs., tit. 2, § 11008

There is no dispute that Defendants are retired. (UMF 39, 41.) They offer evidence that although they paid Plaintiff and other persons to perform maintenance work on their properties, they did not regularly employ five or more persons. Plaintiff argues that a triable issue exists because several persons at times worked at Defendants' properties.

Plaintiff has not identified by full name any person, other than himself, whom he contends was employed by Defendants. (See Plt.'s Dep. Tr. at 17.) That fact is not dispositive, but it underscores the limited evidentiary record concerning the alleged employment relationship of the other workers.

Plaintiff relies on deposition testimony, his declaration, and paragraph 6 of the FAC to argue that other persons regularly assisted with work at Defendants' properties. The unverified FAC is not evidence. The cited testimony and declaration do not establish that Defendants regularly employed five or more persons.

The unverified FAC does not constitute evidence on summary judgment. In any event, paragraph 6 does not identify workers other than Plaintiff as employees of Defendants.

The only relevant cited portions of Plaintiff's deposition testimony, and Plaintiff's declaration, appear to be following:

- Plaintiff's depo. Tr. at 72:

Q: And the workers that worked with you at the Prados, you hired those people. Correct?

A: Sometimes Ana would tell me that I had to take workers. So I had to look for them because she would tell me. She would order me that she needed people.

Q: And who paid those workers?

A: I did from my money.

Q: Did the workers work for your company?

A: They worked at Ana's house.

Q: Yes. But you paid them. So I'm trying to figure out if the workers worked for you or your company.

A: Yes, they worked for me, and I would pay them.

- Plaintiff's depo. Tr. at 114:

Q: I think -- I'm not sure if we asked this before, but did you consider your helpers to be employees of Yours?

A. It depended. When Ana asked me to take employees, they were her employees. But when I would go ask for their help, then they were my employees, and I was responsible for them.

- Plaintiff's Decl., ¶ 16:

Ana Prado decided how many workers were needed at the properties. She would tell me that she needed people, and I would bring the number of workers she asked for. I did not decide how many workers came. The workers I brought at her direction worked at the Prados' properties, on the tasks Ana Prado assigned, and under her direction. My understanding was that they were her employees.

- Plaintiff's Decl., ¶ 17:

Over the years I also recruited helpers of my own through people I knew. Those helpers agreed on their rates with me, and I paid them myself.

- Plaintiff's Decl., ¶ 18:

Including myself, there were regularly four to five people performing work at the Prados' properties.

Even viewing the evidence favorably to Plaintiff, a reasonable trier of fact could not conclude on this record, without speculation, that Defendants regularly employed five or more persons during the relevant period. Plaintiff testified that he recruited helpers, negotiated their pay, and paid them himself. (Plt.'s Dep. Tr. at 72; Plt.'s Decl., ¶ 17.) His statement that he understood certain helpers to be Defendants' employees does not supply evidence of an employment relationship sufficient to satisfy FEHA's five-person threshold.

Accordingly, Plaintiff's evidence does not support a reasonable inference that Defendants regularly employed five or more persons during the relevant period. The MSA is **GRANTED** as to Causes of Action Nos. 10-15.

THE MOTION FOR SUMMARY ADJUDICATION IS DENIED AS TO THE NEGLIGENCE CLAIMS (COA Nos. 16-17)

Cause of Action No. 16 invokes Labor Code sections 3706 and 6403 and depends, at least in material part, on an employer-employee relationship. Because a triable issue remains as to Plaintiff's status, summary adjudication of Cause of Action No. 16 is **DENIED**.

Cause of Action No. 17 alleges general negligence and does not depend exclusively on an employer-employee relationship. Defendants contend that Plaintiff was an independent contractor and that the Privette doctrine bars the claim. If Plaintiff proves that he was Defendants' employee, Privette does not supply a basis for eliminating an ordinary negligence claim. Even if Plaintiff was an independent contractor, however, the evidence raises a triable issue concerning the retained-control exception. Under *Hooker v. Department of Transportation* (2002) 27 Cal.4th 198, 202, a hirer may be liable when it retains control over safety conditions, actually exercises that retained control, and its exercise affirmatively contributes to the worker's injury. Plaintiff offers evidence that Ana Prado directed him to move the couch using only one helper despite his statement that he needed additional assistance. If credited, that evidence could support a finding that Defendants exercised retained control in a manner that affirmatively contributed to the injury. The MSA is therefore **DENIED** as to Cause of Action No. 17.

THE MOTION FOR SUMMARY ADJUDICATION OF PLAINTIFF'S CLAIM FOR PUNITIVE DAMAGES IS GRANTED

On summary adjudication, the Court considers Plaintiff's ultimate burden to prove malice, oppression, or fraud by clear and convincing evidence. (Civ. Code, § 3294, subd. (a).) "Clear and convincing" evidence requires a finding of high probability, leaving no substantial doubt and sufficiently strong to command the unhesitating assent of every reasonable mind. (In re Angelia P. (1981) 28 Cal.3d 908, 919.) Mere negligence, even gross negligence, does not by itself establish malice or oppression. (See *Ebaugh v. Rabkin* (1972) 22 Cal.App.3d 891, 894; *Taylor v. Superior Court* (1979) 24 Cal.3d 890, 895-896.) Civ. Code Sect. 3294(a) *Beck v. State Farm Mut. Auto. Ins. Co.* (1976) 54 Cal.App.3d 347, 355

Civil Code section 3294 defines "malice" as conduct intended to cause injury or despicable conduct carried on with a willful and conscious disregard of the rights or safety of others. (Civ. Code, § 3294, subd. (c)(1).) "Oppression" means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights. (Id., subd. (c)(2).) "Despicable" conduct is conduct so vile, base, or contemptible that ordinary decent people would look down upon and despise it; punitive damages require conduct rising to a level of extreme indifference to the plaintiff's rights. (*Lackner v. North* (2006) 135 Cal.App.4th 1188, 1210; see *College Hospital Inc. v. Superior Court* (1994) 8 Cal.4th 704, 725.) Sect. 3294(c)(1) CACI 3940, 3941 Sect. 3294(c)(2) *College Hosp., Inc. v. Sup.Ct.* (1994) 8 Cal.4th 704, 725

The FAC does not plead fraud or another intentional tort, and Plaintiff does not contend that Defendants intended to injure him. To recover punitive damages based on malice or oppression, Plaintiff therefore would have to prove by clear and convincing evidence that Defendants engaged in despicable conduct with the required conscious disregard. (Civ. Code, § 3294, subds. (c)(1)-(2).) Even viewing the evidence favorably to Plaintiff, the record does not support a reasonable finding meeting that standard. Sect. 3294(c)(1)

Plaintiff principally relies on testimony that, after the injury, Jose Prado did not summon help and allegedly stated that "the sofa is worth more than your body." (Plt.'s Dep. Tr. at 88.) If made, the statement was callous. But the punitive-damages inquiry concerns whether the evidence could establish despicable conduct undertaken with the statutory state of mind. The alleged post-injury statement does not establish conscious disregard of a known risk before or during the couch move. Plaintiff also testified that he did not seek medical attention until months later. (Plt.'s Dep. Tr. at 88, 138-139.) On this record, the evidence does not support punitive damages under the clear-and-convincing standard.

Accordingly, the MSA is **GRANTED** as to Plaintiff's request for punitive damages.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for the moving party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to California Rules of Court, rule 3.1312, and shall provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court. The Court alerts the parties to revised Local Rule 3.403(b)(iv), amended effective January 1, 2024, regarding the wording of proposed orders.

2:00 PM LINE 2

24-CIV-01921

TRUEBECK CONSTRUCTION, INC., ET AL VS. SETH TAYLOR, ET AL

TRUEBECK CONSTRUCTION, INC.
SETH TAYLOR

A ROBERT ROSIN

Plaintiff Young Electric Co.'s Motion for Leave to File Second Amended Complaint

TENTATIVE RULING:

For the reasons stated below, Plaintiff Young Electric Co.'s ("Young Electric") Motion for Leave to File Second Amended Complaint ("SAC") is **GRANTED**.

BACKGROUND

On June 17, 2022, Truebeck Construction, Inc. ("Truebeck"), as general contractor, entered into a contract with Defendant SL 750G, LLC to perform construction work at 750 Gateway Boulevard in South San Francisco (the "project"). Defendant SmartLabs was a tenant at the property, and Defendant BMR-Gateway of Pacific II LLC, f/k/a BMR-Gateway of Pacific II LP, f/k/a BMR-750, 800, 850 Gateway LP, owns the property. Truebeck filed this lead action on March 28, 2024. This lead action has been consolidated with related matters, including Young Electric's action as a subcontractor that performed work on the project (San Mateo Superior Court Case No. 24CIV02352).

On June 26, 2024, Young Electric filed a verified First Amended Complaint to foreclose a mechanic's lien. Young Electric seeks leave to file the proposed verified SAC to: (1) correct an inadvertent error in the APN stated in the operative pleading and recorded mechanic's lien by substituting the correct APN 015-023-540; and (2) substitute SL 750G, LLC as a named defendant in place of Doe 1 based on discovery that it held a leasehold interest in the property and was not named in the First Amended Complaint.

LEGAL STANDARD

Code of Civil Procedure section 473, subdivision (a)(1), authorizes the Court, in furtherance of justice and on proper terms, to permit amendment of a pleading. Section 576 similarly permits amendment of a pleading at any time before or after commencement of trial. A motion for leave to amend is also governed by California Rules of Court, rule 3.1324. Judicial policy favors liberal allowance of amendments so that disputed matters may be resolved in the same action. (*Kittredge Sports Co. v. Superior Court* (1989) 213 Cal.App.3d 1045, 1047-1048; *Nestle v. City of Santa Monica* (1972) 6 Cal.3d 920, 939.) Even where delay is asserted, denial of leave to amend is generally improper absent prejudice to the opposing party. (*Higgins v. Del Faro* (1981) 123 Cal.App.3d 558, 564-565.) Courts also ordinarily do not determine the legal sufficiency of a proposed amended pleading on a motion for leave to amend; the preferred practice is to permit

the amendment and allow the opposing party to challenge the pleading by demurrer, motion for judgment on the pleadings, or another appropriate procedure. (*Kittredge, supra*, 213 Cal.App.3d at p. 1048.)

DISCUSSION

All parties except FBNE signed a stipulation agreeing to the proposed SAC. (Sternik Decl., ¶ 12 & Exh. 3.) Young Electric's counsel contacted FBNE's counsel multiple times seeking agreement to the stipulation, but FBNE's counsel did not respond. (Sternik Decl., ¶ 13 & Exh. 4.) Young Electric therefore filed the Motion. To date, neither FBNE nor any other party has filed an opposition asserting prejudice from the proposed amendment. No trial date is set.

Because leave to amend is liberally granted and no party has shown prejudice, the Motion is **GRANTED**.

ORDER

Young Electric shall file and serve the Second Amended Complaint by September 24, 2026.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for the moving party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to California Rules of Court, rule 3.1312, and shall provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court. The Court alerts the parties to revised Local Rule 3.403(b)(iv), amended effective January 1, 2024, regarding the wording of proposed orders.

2:00 PM LINE 3

24-CIV-01921

TRUEBECK CONSTRUCTION, INC., ET AL VS. SETH TAYLOR, ET AL

TRUEBECK CONSTRUCTION, INC.
SETH TAYLOR

A ROBERT ROSIN

Plaintiff Royal Glass Company, Inc.'s Motion for Leave to File a Name Correction Amendment

TENTATIVE RULING:

For the reasons stated below, Plaintiff's motion for leave to amend is **GRANTED**.

Plaintiff's requests for judicial notice are **GRANTED**, except as to "Fact Two" and "Fact Three," which impermissibly ask the Court to take judicial notice of, respectively, the absence of a public record and legal conclusions asserted from public records.

The Court declines to rule on Defendant's evidentiary objections because the challenged evidence is not material to disposition of this motion.

BACKGROUND

On April 2, 2024, Plaintiff Royal Glass recorded its original mechanic's lien, naming "BMR-Gateway of Pacific II LLC" as the owner or reputed owner. (RJN, Ex. A, Royal Glass Complaint, ¶ 28 & Ex. 3.) Plaintiff recorded an amended mechanic's lien on June 28, 2024, naming "BMR-700 GATEWAY, LP," "BMR-750 800 850 GATEWAY LP," and "BMR-Gateway of Pacific II LLC" as owners or reputed owners. (Id., ¶ 29 & Ex. 4.)

On June 28, 2024, Plaintiff filed its Complaint to foreclose a mechanic's lien in the amount of \$233,536 for unpaid supply and installation of exterior glass at the project commonly known as "SmartLabs." (RJN, Ex. A, Complaint.) The Complaint named BMR-750, 800, 850 Gateway LP and BMR Gateway of Pacific II LP as defendants but did not expressly name BMR Gateway of Pacific II LLC. The Complaint nevertheless attached and incorporated the original and amended mechanic's liens, which identify BMR Gateway of Pacific II LLC as an owner or reputed owner of the property. (Id., ¶¶ 28-29 & Exs. 3-4.)

On April 14, 2025, through counsel, Defendant BMR Gateway of Pacific II LLC ("Defendant LLC") signed a Notice and Acknowledgment of Receipt of Summons identifying itself as "BMR-Gateway of Pacific II, LLC (erroneously sued as BMR Gateway of the Pacific II, LP)." (RJN, Ex. H, Proof of Service and Notice and Acknowledgment of Receipt, § 3(b).)

On May 14, 2026, Defendant LLC filed an Answer to Plaintiff's Complaint identifying itself as "Defendant BMR-GATEWAY OF PACIFIC II LLC (erroneously sued herein as BMR-750, 800, 850 Gateway LP and BMR Gateway of Pacific II, LP)." (RJN, Ex. I, Defendant LLC's Answer.)

In this consolidated action, Plaintiff Royal Glass Company, Inc. now moves for leave to amend its Complaint to correct the failure to expressly name BMR Gateway of Pacific II LLC as a defendant.

DISCUSSION

Plaintiff argues that its failure to include BMR Gateway of Pacific II LLC ("Defendant LLC") in the caption was an inadvertent misnomer and seeks leave under Code of Civil Procedure section 473, subdivision (a)(1), to correct that mistake. Defendant LLC argues the omission is not a mere misnomer and that the statute of limitations bars Plaintiff from adding Defendant LLC as a different entity to the mechanic's-lien foreclosure claim.

Code of Civil Procedure section 473, subdivision (a)(1), provides that the Court may, in furtherance of justice and on proper terms, allow amendment of a pleading "by correcting a mistake in the name of a party."

Whether an amendment after expiration of the limitations period merely corrects a party's description or instead substitutes a new party depends on whether the error is a misnomer or defect in description, as opposed to an entire change of parties. (*Hawkins v. Pacific Coast Building Products, Inc.* (2004) 124 Cal.App.4th 1497, 1503.)

When only one party or entity is involved, errors in the party's name or status may generally be corrected. When different individuals or entities are involved, courts scrutinize the amendment more closely to determine whether it would actually substitute a new party. (See *Thompson v. Palmer Corp.* (1956) 138 Cal.App.2d 387, 390; see also Cal. Practice Guide: Civil Procedure Before Trial, Statutes of Limitations, ch. 8-B, Amendments Correcting Misnomers, § 8:140.)

Here, the Court is inclined to view the omission of Defendant LLC from the Complaint as a misnomer. Plaintiff's original and amended mechanic's liens identified Defendant LLC as an owner or reputed owner of the property, and those liens were attached to and incorporated into the Complaint. (RJN, Ex. A, Complaint, ¶¶ 28-29 & Exs. 3-4.) The record further reflects that BMR-Gateway of Pacific II LP converted to BMR-Gateway of Pacific II LLC on December 21, 2022. (RJN, Ex. J, Bergschneider Decl. in Support of Defendant LLC's Motion for Summary Adjudication, ¶ 5 & Ex. D.) These are not alleged to be two entities operating separately and concurrently during the relevant period. The circumstances therefore support the conclusion that Plaintiff intended to proceed against the BMR ownership entity identified in the liens but failed to state Defendant LLC's current name expressly in the caption.

The Court need not rest solely on the misnomer characterization. Even if the omission were viewed as more than a simple misnomer, Defendant LLC's own appearance and participation under the designation "erroneously sued" weigh strongly against permitting it to invoke the limitations period to defeat the requested amendment.

California authority recognizes circumstances in which an amendment changing a defendant's name may relate back where the plaintiff intended to sue the proper defendant under an erroneous designation and the intended defendant or closely related entities appeared or acted in a manner that allowed the mistake to persist. (See *Cuadros v. Superior Court (Budget Rent-A-Car Systems, Inc.)* (1992) 6 Cal.App.4th 671, 676-678; *Prince v. Jensen Motors, Inc.* (1983) 139 Cal.App.3d 653, 655-656; *Omega Video Inc. v. Superior Court (Robert Bosch Corp.)* (1983) 146 Cal.App.3d 470, 480-481.)

In *Cuadros*, the plaintiff mistakenly named Budget Rent-A-Car Systems, Inc. and KH Group, doing business as Budget Rent-A-Car of Santa Monica, rather than the proper Budget entity. The named entities answered and participated in the litigation for years without correcting the plaintiff's mistake. The Court of Appeal held that, given the strikingly similar names, common ownership, common address, and litigation conduct, the defendants were estopped from opposing an amendment naming the proper defendant after expiration of the limitations period. (*Cuadros*, supra, 6 Cal.App.4th at pp. 676-678.)

The circumstances here are comparable in material respects. The LLC and LP have strikingly similar names, each has been identified in the record as an owner or reputed owner of the property, and the Secretary of State filings submitted for judicial notice list the same corporate office at 17190 Bernardo Center Drive, San Diego, California. (RJN, Exs. E-G.) Those circumstances support a finding that Plaintiff's naming error was excusable.

Unlike Cuadros, Defendant LLC did not remain silent about its identity. It appeared and identified itself in the Notice and Acknowledgment of Receipt and in its Answer as "BMR-Gateway of Pacific II LLC (erroneously sued as BMR-Gateway of Pacific II LP)." That distinction does not require denial of leave to amend. By accepting service, answering, and litigating under the "erroneously sued" designation, Defendant LLC demonstrated actual notice that it was the BMR entity Plaintiff intended to charge. Under the circumstances, allowing Defendant LLC to rely on the naming error now would elevate form over the merits despite its actual participation in the action.

Defendant LLC argues that amendment would prejudice it by eliminating a limitations defense. The record, however, reflects that Defendant LLC had actual notice of the claims and has had a full opportunity to participate in the litigation. On this record, Defendant LLC has not shown cognizable prejudice from correction of the naming error.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for Plaintiff Royal Glass shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to California Rules of Court, rule 3.1312, and shall provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court. The Court alerts the parties to revised Local Rule 3.403(b)(iv), amended effective January 1, 2024, regarding the wording of proposed orders.

2:00 PM LINE 4

24-CIV-03310

SCHNEIDER ELECTRIC BUILDINGS AMERICAS, INC. VS. CALIFORNIA UNITED MECHANICAL, INC., ET AL

SCHNEIDER ELECTRIC BUILDINGS AMERICAS, INC.
CALIFORNIA UNITED MECHANICAL, INC.

KEVIN T CAULEY
EMMA B LLOYD

Plaintiff's Motion for Leave to File a DOE Amendment

TENTATIVE RULING:

For the following reasons, Plaintiff Schneider Electric Buildings Americas, Inc.'s motion for leave to file a Doe amendment substituting BMR-Gateway of Pacific II LLC, f/k/a BMR-Gateway of Pacific II LP, f/k/a BMR-750, 800, 850 Gateway LP, for Doe 6 is **GRANTED**.

LEGAL STANDARD

Code of Civil Procedure section 473, subdivision (a)(1), authorizes the Court, in furtherance of justice and on proper terms, to permit amendment of a pleading. Section 576 similarly permits amendment of a pleading at any time before or after commencement of trial. A motion for leave to amend is also governed by California Rules of Court, rule 3.1324. Judicial policy favors liberal allowance of amendments so that disputed matters may be resolved in the same action. (*Kittredge Sports Co. v. Superior Court* (1989) 213 Cal.App.3d 1045, 1047-1048; *Nestle v. City of Santa Monica* (1972) 6 Cal.3d 920, 939.) Even where delay is asserted, denial of leave to amend is generally improper absent prejudice to the opposing party. (*Higgins v. Del Faro* (1981) 123 Cal.App.3d 558, 564-565.) Courts also ordinarily do not determine the legal sufficiency of a proposed amended pleading on a motion for leave to amend; the preferred practice is to permit the amendment and allow the opposing party to challenge the pleading by demurrer, motion for judgment on the pleadings, or another appropriate procedure. (*Kittredge, supra*, 213 Cal.App.3d at p. 1048.)

DISCUSSION

Plaintiff's original complaint named Doe defendants, and there remain disputed issues concerning Plaintiff's actual knowledge of BMR's identity when the action was commenced, as well as the legal effect of the undisputed entity conversion history. (See *Grinnell Fire Protection Systems Co. v. American Savings & Loan Assn.* (1986) 183 Cal.App.3d 352.) The Court does **not**, by granting leave to amend, determine that the amendment relates back to the filing of the original complaint, that Plaintiff satisfied Civil Code section 8460, or that the mechanic's lien is otherwise enforceable. BMR's defenses under Civil Code section 8460, Code of Civil Procedure section 474, the statute of limitations, and its pending motion for summary adjudication are expressly preserved. BMR's general appearance establishes that it became a party to the action, but the Court does not determine on this motion the date to which claims against BMR relate back for limitations purposes. (See *Fireman's Fund Ins. Co. v. Sparks Construction, Inc.* (2004) 114 Cal.App.4th 1135.)

California law favors liberal amendment of pleadings, and on the present record the Court cannot conclude that the proposed amendment is futile as a matter of law.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for Plaintiff shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to California Rules of Court, rule 3.1312, and shall provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court. The Court alerts the parties to revised Local Rule 3.403(b)(iv), amended effective January 1, 2024, regarding the wording of proposed orders.

2:00 PM LINE 5

24-CIV-07029 SEAN LIU, ET AL VS. WEI MING TOH, ET AL

SEAN LIU
WEI MING TOH

MICHAEL MENGARELLI
KORY L. PHILLIPS

Plaintiffs' Motion for Leave to File First Amended Complaint

TENTATIVE RULING:

Plaintiffs Sean Liu and Casey Harmon's Motion for Leave to File a First Amended Complaint is ruled on as follows:

First, the notice of motion lists an incorrect address for the hearing. (See Cal. Rules of Court, rule 3.1110.) The hearing will be held in Department 2, Courtroom K, at 1050 Mission Road, South San Francisco, California.

Second, the proof of electronic service of the motion and supporting papers fails to state "[t]he electronic service address ... of the person making the electronic service," as required by Code of Civil Procedure section 1013b, subdivision (b)(1). If, by the time of the hearing, Plaintiffs file an amended proof of service that fully complies with section 1013b, the Court intends to **GRANT** leave to file the proposed First Amended Complaint. If an amended proof is filed, counsel for Plaintiffs shall appear at the hearing and notify the Court.

The parties are advised that future proposed amendments should first be pursued by stipulation when reasonably possible, and only genuinely disputed amendments should require a noticed motion. An unreasonable refusal to stipulate to a readily curable amendment may support sanctions in an appropriate case. (See *Ellis v. Roshei Corp.* (1983) 143 Cal.App.3d 642, 649-650.)

2:00 PM LINE 6

25-CIV-10124

KELCEY NUQUI VS. COUNTY OF SAN MATEO, A PUBIC ENTITY AND SUBDIVISION OF CALIFORNIA

KELCEY NUQUI

COUNTY OF SAN MATEO, A PUBIC ENTITY AND SUBDIVISION OF CALIFORNIA

JUSTIN L. CLARK

CRAIG N. BAUMGARTNER

Defendant's Demurrer to Plaintiff's Complaint

TENTATIVE RULING:

For the following reasons, Defendant County of San Mateo's Demurrer to the Third Cause of Action for Disability Discrimination in Violation of FEHA, Fifth Cause of Action for Failure to Provide Reasonable Accommodations in Violation of FEHA, Sixth Cause of Action for Failure to Engage in Good Faith in the Interactive Process in Violation of FEHA, Ninth Cause of Action for Retaliation in Violation of the California Family Rights Act ("CFRA"), and Tenth Cause of Action for Interference with Rights in Violation of the CFRA is **SUSTAINED IN PART** with leave to amend and **OVERRULED IN PART**, as follows:

THIRD CAUSE OF ACTION FOR DISABILITY DISCRIMINATION IN VIOLATION OF FEHA

Against a public entity, material facts necessary to establish statutory liability must be pleaded with particularity. (*Agustin v. Golden Empire Transit Dist.* (2025) 116 Cal.App.5th 426; *Lopez v. Southern Cal. Rapid Transit Dist.* (1985) 40 Cal.3d 780, 795.)

The elements of a prima facie claim for mental-disability discrimination under FEHA are: (1) a qualifying mental disability; (2) the ability to perform the essential functions of the job, with or without reasonable accommodation; and (3) an adverse employment action because of the disability. (*Higgins-Williams v. Sutter Medical Foundation* (2015) 237 Cal.App.4th 78, 84.)

DISABILITY

Government Code section 12926 defines a mental disability to include a "mental or psychological disorder or condition, such as ... emotional or mental illness ... that limits a major life activity." (Gov. Code, § 12926, subd. (j)(1).) Plaintiff alleges that she "experienced aggravating medical symptoms related to stress, anxiety, difficulty and/or inability to eat, concentration problems." (Complaint, ¶ 20.) As pleaded, those allegations describe symptoms but do not identify a mental or psychological disorder or condition. Plaintiff's additional allegations that "Defendants knew of Plaintiff's disabilities" and that her "disabilities and medical conditions were substantial motivating reasons" for adverse treatment are conclusory as to the existence of a qualifying disability and do not satisfy the particularity required when pleading statutory liability against a public entity. (*Id.*, ¶¶ 41-42.)

Plaintiff emphasizes FEHA's broad definition of disability, but the pleading must still allege facts identifying a qualifying disorder or condition. The Complaint, as currently pleaded, does not do so.

CAUSATION

Plaintiff alleges that the severe and pervasive harassment and bullying by coworkers arose from sex discrimination and retaliation for her report, rather than from disability. (Complaint, ¶¶ 14, 19.) She further alleges that her stress-related symptoms were caused by the allegedly discriminatory and retaliatory conduct of Delfin and coworkers. (Id., ¶ 20.) On the chronology alleged, that earlier conduct could not have occurred because of symptoms that allegedly resulted from the conduct. Plaintiff also alleges that Dickens sent the June 17 text with disregard for Plaintiff's mental health and disability status. (Id., ¶ 22.) That allegation does not itself allege that Dickens sent the text because of a disability.

Plaintiff also alleges that her disabilities and medical conditions were substantial motivating reasons for the bullying texts and adverse treatment, but that allegation is conclusory. (Id., ¶ 42.)

Plaintiff correctly notes that alleged adverse actions must be assessed collectively and in context. (*Bailey v. San Francisco District Attorney's Office* (2024) 16 Cal.5th 611, 638.) That principle concerns whether conduct is materially adverse; it does not supply causation where the pleaded chronology does not connect the alleged disability to the challenged conduct.

The Demurrer to the Third Cause of Action is **SUSTAINED WITH LEAVE TO AMEND**.

FIFTH CAUSE OF ACTION FOR FAILURE TO PROVIDE REASONABLE ACCOMMODATIONS IN VIOLATION OF FEHA

The Fifth Cause of Action fails for the same threshold reason as the Third Cause of Action: the Complaint does not adequately allege a qualifying disability.

Failure to reasonably accommodate under Government Code section 12940, subdivision (m), is an independent FEHA violation, and a leave of absence may constitute a reasonable accommodation. (*Moore v. Regents of University of California* (2016) 248 Cal.App.4th 216, 242-243.) Plaintiff identifies the requested accommodation as "temporary time off ... for a recuperative leave of absence." (Complaint, ¶ 55.) The Complaint alleges that the County approved that leave in full and that it remained in effect until Plaintiff resigned one day before her scheduled return. (Id., ¶¶ 20, 23.) As currently pleaded, Plaintiff therefore does not allege that the requested leave accommodation was denied.

The Demurrer to the Fifth Cause of Action is **SUSTAINED WITH LEAVE TO AMEND**.

SIXTH CAUSE OF ACTION FOR FAILURE TO ENGAGE IN GOOD FAITH IN THE INTERACTIVE PROCESS IN VIOLATION OF FEHA

The Sixth Cause of Action fails for the same threshold reason as the Third Cause of Action: the Complaint does not adequately allege a qualifying disability.

Defendant contends its duty to engage in the interactive process arose "only ... at the conclusion of her CFRA leave" and therefore was never triggered because Plaintiff resigned one day before her scheduled return. (Demurrer, p. 7:10-13.) The interactive-process duty, however, may be triggered by an employee's request for reasonable accommodation or by the employer's awareness of a possible need for accommodation through observation or a third party. (Cal. Code Regs., tit. 2, § 11069, subd. (b).) A request for medical leave may itself constitute a request for accommodation. (*Moore v. Regents of University of California, supra*, 248 Cal.App.4th at pp. 242-243.) Accordingly, Defendant's contention that the duty could arise only when CFRA leave ended does not provide an independent basis for sustaining the demurrer. The claim nevertheless fails as pleaded because Plaintiff has not adequately alleged a qualifying disability.

The Demurrer to the Sixth Cause of Action is **SUSTAINED WITH LEAVE TO AMEND**.

NINTH CAUSE OF ACTION FOR RETALIATION IN VIOLATION OF THE CALIFORNIA FAMILY RIGHTS ACT ("CFRA")

A CFRA retaliation claim requires a covered employer, an eligible employee, exercise of the right to qualifying leave, and an adverse employment action taken because of the exercise of that right. (*Rogers v. County of Los Angeles* (2011) 198 Cal.App.4th 480.) Defendant challenges the adverse-action and causation elements.

ADVERSE ACTION

Defendant argues that a single text from an acting supervisor who was not the ultimate decisionmaker is not a materially adverse action and that mere ostracism or relatively trivial conduct is not actionable. Plaintiff responds that the alleged conduct must be evaluated collectively and in context. (See *Bailey v. San Francisco District Attorney's Office*, *supra*, 16 Cal.5th at p. 638.) Plaintiff further contends that the conduct culminated in a constructive discharge.

A constructive discharge requires working conditions that are so intolerable or aggravated that a reasonable employee would be compelled to resign; single, trivial, or isolated acts generally are insufficient. The employer must intentionally create or knowingly permit the intolerable conditions. (*Turner v. Anheuser-Busch, Inc.* (1994) 7 Cal.4th 1238, 1247.) The Complaint alleges one June 17 text while Plaintiff was on approved leave. Standing alone, that allegation does not sufficiently plead a constructive discharge.

The Complaint also does not allege additional facts showing that the County directed, authorized, or ratified the June 17 text, or that County decisionmakers took any further adverse action before Plaintiff resigned. Those pleading gaps reinforce the deficiency in the constructive-discharge theory.

CAUSATION

Defendant argues that the approximately one-month interval between the June 17 text and Plaintiff's July 14 resignation, with no intervening County action alleged, fails to establish a causal link. Plaintiff's current allegations do not plead additional facts connecting the exercise of CFRA rights to a materially adverse employer action.

The Demurrer to the Ninth Cause of Action is **SUSTAINED WITH LEAVE TO AMEND**.

TENTH CAUSE OF ACTION FOR INTERFERENCE WITH RIGHTS IN VIOLATION OF THE CFRA

A CFRA interference claim requires entitlement to CFRA leave and employer interference with, restraint of, or denial of CFRA rights. (Gov. Code, § 12945.2, subd. (q).) The implementing regulation expressly provides that interference includes "discouraging an employee from using such leave." (Cal. Code Regs., tit. 2, § 11094, subd. (a).) Plaintiff alleges that, while she was on approved leave, Dickens urged her to "stop dragging this out" and "either come back or quit." (Complaint, ¶ 21.) At the pleading stage, those allegations are sufficient to allege discouragement from using CFRA leave.

The Demurrer to the Tenth Cause of Action is **OVERRULED**.

Plaintiff may file a First Amended Complaint within 10 days after service of notice of entry of this order.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for Defendant shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to California Rules of Court, rule 3.1312, and shall provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court. The Court alerts the parties to revised Local Rule 3.403(b)(iv), amended effective January 1, 2024, regarding the wording of proposed orders.

2:00 PM LINE 7

25-CLJ-10223

JPMORGAN CHASE BANK, N.A. VS MERYAMA ALLAM

JPMORGAN CHASE BANK, N.A.
MERYAMA ALLAM

BRIAN LANGEDYK
PRO SE

Defendant's Motion to Quash Service of Summons

TENTATIVE RULING:

The motion to quash is **GRANTED**. The registered process server's return is entitled to the presumption stated in Evidence Code section 647, but Defendant has offered evidence sufficient to rebut that presumption. Her declaration states that no person matching the physical description in the proof of service resided at her home and that no competent member of her household was present to accept service. Plaintiff therefore bears the burden to establish facts supporting valid substituted service and has not presented evidence sufficient to show that the unidentified recipient was a member of Defendant's household. (*Summers v. McClanahan* (2006) 140 Cal.App.4th 403, 413.)

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for Defendant shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to California Rules of Court, rule 3.1312, and shall provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court. The Court alerts the parties to revised Local Rule 3.403(b)(iv), amended effective January 1, 2024, regarding the wording of proposed orders.

2:00 PM LINE 8

CLJ503426

BUREAUS INVESTMENT GROUP VS CARL DAHL JR

**BUREAUS INVESTMENT GROUP PORTFOLIO NO 13 LLC
CARL DAHL JR**

**ERIC MINTZ
JOHN G. DOWNING**

Plaintiff's Hearing on Claim of Exemption

TENTATIVE RULING:

The hearing is **CONTINUED**. The parties are to appear. The Court cannot determine the Claim of Exemption on the present record because the packet before the Court contains Judgment Creditor's opposition and its characterization of Judgment Debtor's claimed expenses, but not the underlying Claim of Exemption and Financial Statement. The levying officer is directed to file those documents before the continued hearing. The Court will then determine the amount of any exemption under Code of Civil Procedure sections 706.050 and 706.051.

**UD LAW AND MOTION CALENDAR
THURSDAY, SEPTEMBER 17, 2026**

2:00 PM LINE 9

26-UDL-00079

473-475 GRAND AVE LLC VS. ARTURO PEREZ, ET AL

**473-475 GRAND AVE LLC
ARTURO PEREZ**

**JOANNA KOZUBAL
PRO SE**

Plaintiff's Motion to Enforce Settlement Agreement Per C.C.P. 664.6 and for Judgment Pursuant to Stipulation

TENTATIVE RULING:

For the reasons stated below, Plaintiff 473-475 Grand Ave LLC's unopposed Motion to Enforce Settlement Agreement under Code of Civil Procedure section 664.6 and for Judgment Pursuant to Stipulation (the "Motion") is **GRANTED**.

BACKGROUND

Plaintiff is the owner of the premises at 475 1/2 Grand Avenue #3, South San Francisco, CA 94080 (the "Premises"). (Operative First Amended Complaint ("FAC"), p. 1, boxes 3 & 4.) Defendants signed a month-to-month lease of the Premises on or about November 26, 2020. (Id. at p. 2, box 6.a.) The lease is not attached because this action is solely for nonpayment of rent. (Id. at p. 2, box 6.f.2.) Plaintiff served each Defendant with a Three-Day Notice to Pay Rent or Quit, which expired on January 14, 2026, without compliance. (Id. at pp. 2-3, box 9 & Exh. 2.)

Plaintiff's agent and Defendants signed a Stipulation for Entry of Judgment or Dismissal of Action on April 17, 2026. (Kozubal Decl., ¶ 3 & Exh. 1 (the "Stipulation and Order").) The Stipulation and Order was filed on April 21, 2026. Commissioner Elliott signed it on April 20, 2026, adding procedural notes and setting a hearing for an Order to Show Cause re Dismissal. Judge McCannon later found that Defendants had breached the Stipulation and awarded possession to Plaintiff. (Order Entering Judgment, filed May 11, 2026.) A Writ of Possession issued on May 13, 2026.

This Court denied an earlier version of the Motion without prejudice for failure to establish proper service on Defendants and failure to state the hearing address. (Order filed Aug. 26, 2026 (the "Order").)

Through the present Motion, Plaintiff seeks a judgment directing Defendants to pay \$27,655.00.

LEGAL STANDARD

The Court has the power to compel obedience to its judgments and orders. (Code Civ. Proc., § 128, subd. (a)(4); *Security Trust & Savings Bank v. Southern Pacific Railroad Co.* (1935) 6 Cal.App.2d 585, 588-589.) The Court also has jurisdiction to enforce the Stipulation and Order under Code of Civil Procedure section 664.6.

THE MOTION IS GRANTED

Plaintiff has complied with the August 26, 2026 Order concerning service. The Proof of Service states that the Motion was served by first-class mail on each Defendant at the address of record. (Proof of Service filed with the Motion on Aug. 19, 2026.)

Plaintiff's counsel declares that Defendants breached the Stipulation and Order, resulting in entry of a judgment of possession on May 11, 2026, and eviction on June 11, 2026. (Kozubal Decl., ¶¶ 4-5.)

Plaintiff seeks:

1. past-due rent of \$17,700.00 (id., ¶ 6; see also FAC, p. 3, box 13 & p. 7, in Exh. 1);
2. daily damages of \$70.00 per day from February 1, 2026, through June 11, 2026, inclusive, totaling \$9,170.00 (\$70.00 x 131 days) (Kozubal Decl., ¶ 6; see also FAC, p. 3, box 14); and
3. costs of \$785.00 (\$440.00 in filing fees and \$345.00 in process-server fees) (Kozubal Decl., ¶ 7),

for a total of \$27,655.00 (ibid.).

The Court therefore **GRANTS** the Motion and enters judgment in Plaintiff's favor in the amount of \$27,655.00.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for Plaintiff shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to California Rules of Court, rule 3.1312, and shall provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court. The Court alerts the parties to revised Local Rule 3.403(b)(iv), amended effective January 1, 2024, regarding the wording of proposed orders.

2:00 PM LINE 10

26-UDL-00415

MENTAL HEALTH ASSOCIATION OF SAN MATEO COUNTY VS. JORDAN MACHADO

MENTAL HEALTH ASSOCIATION OF SAN MATEO COUNTY
JORDAN MACHADO

STEVEN T. NAUMCHIK
PRO SE

Defendant's Motion to Set Aside and Vacate Judgment

TENTATIVE RULING:

For the following reasons, Defendant Jordan Machado's Motion to Set Aside and Vacate Judgment pursuant to Code of Civil Procedure section 473, subdivision (b), is **DENIED**.

Defendant seeks relief from the August 18, 2026 judgment on the ground that, although she knew the matter had been set for trial at 10:00 a.m., a calendar posted outside Department 2 on the morning of trial listed the matter for 11:00 a.m. Defendant declares that she arrived at the courthouse at approximately 9:50 a.m., observed the 11:00 a.m. posting, and left the courthouse to wait at the library across the street. Defendant further contends that she was prejudiced because trial began before she returned, Plaintiff presented testimony and exhibits—including Exhibit 28, a video—and the Court found her jury demand waived during her absence.

Code of Civil Procedure section 473, subdivision (b), permits discretionary relief from a judgment or proceeding taken against a party through "mistake, inadvertence, surprise, or excusable neglect." Although the statute is remedial and generally applied liberally in favor of a determination on the merits, the moving party must nevertheless establish that the mistake or neglect was excusable—that is, conduct that might reasonably have been committed by a prudent person under similar circumstances. (*Elston v. City of Turlock* (1985) 38 Cal.3d 227, 233; *State Farm Fire & Casualty Co. v. Pietak* (2001) 90 Cal.App.4th 600, 611.)

The Court accepts for purposes of this motion that the calendar posted outside Department 2 reflected an 11:00 a.m. time. That fact, however, does not establish excusable mistake or surprise under the circumstances presented here. Defendant was personally present on June 11, 2026 when the Court set trial for August 18, 2026 at **10:00 a.m. in Department 2**, and notice of the setting was thereafter mailed to her. Thus, Defendant had actual notice directly from the Court that trial was scheduled for 10:00 a.m.

The circumstances on the morning of trial further undermine the reasonableness of Defendant's decision to leave the courthouse. Department 2 opened at approximately 10:00 a.m., and Plaintiff's counsel was present. The courtroom door contains a window through which persons standing or sitting in the hallway immediately outside the courtroom can see into the courtroom. At approximately 10:00 a.m., Deputy Rios went into the hallway outside Department 2 and did not observe Defendant there. Accordingly, even assuming Defendant had viewed the erroneous 11:00 a.m. posting shortly before 10:00 a.m., a reasonably prudent litigant who already knew the Court had set trial for 10:00 a.m. would have remained outside the courtroom, observed that the courtroom had opened and the participants were present, or made inquiry concerning the discrepancy rather than leave the courthouse.

Nor did the Court immediately proceed in Defendant's absence. The matter was called at approximately 10:23 a.m. Defendant was not present. At approximately 10:25 a.m., the Court directed Deputy Rios to call Defendant's name in the hallway, and at approximately 10:26 a.m. Deputy Rios reported that there had been no response. Trial did not begin

until approximately 10:30 a.m. Defendant therefore had approximately 30 minutes after the scheduled trial time to return to the courtroom before testimony commenced. She did not enter the courtroom until approximately 10:55 a.m.

The Court therefore finds that Defendant's absence was reasonably avoidable. Defendant knew trial was set for 10:00 a.m.; according to her own declaration she was physically at the courthouse shortly before that time; the courtroom was visible from the hallway; Deputy Rios checked the hallway at approximately 10:00 a.m. and did not see Defendant; Defendant later failed to respond when her name was called; and Defendant nevertheless chose to leave the courthouse based solely on the conflicting posting. Under these circumstances, Defendant has not shown mistake, surprise, or neglect that was excusable within the meaning of section 473(b).

The Court also rejects Defendant's contention that the proceedings following her late arrival require the judgment to be vacated. Plaintiff presented one witness, Eru Mathewos, together with documentary and video evidence. Defendant emphasizes that Exhibit 28 was played before she entered the courtroom and that she had not previously reviewed the video. But Defendant was not denied the opportunity to confront Plaintiff's case after she appeared. The Court permitted Defendant to cross-examine Ms. Mathewos and afforded Defendant an opportunity to examine the evidence. Defendant did not meaningfully avail herself of those opportunities. Instead, she repeatedly interrupted the Court, counsel, and the witness, became increasingly disruptive and aggressive toward the witness, and refused to participate in an orderly examination of the evidence. Defendant's own declaration acknowledges that she interrupted the Court and counsel and was admonished concerning those interruptions.

The Court further notes that the witness toward whom Defendant directed her conduct in court was the same witness whom Defendant had previously been alleged to have threatened with physical harm. At trial, Plaintiff presented video evidence showing Defendant vandalizing property. Plaintiff also presented circumstantial evidence concerning vandalism to other tenants' doors, including the smearing of cat feces, and testimony concerning Defendant's volatile and abusive conduct toward other tenants and toward Ms. Mathewos. The judgment therefore was not entered merely because Defendant failed to appear. It followed the presentation of testimonial and documentary evidence on the merits. The Court's Minute Order specifically reflects reliance on Exhibit 28 in finding that Defendant damaged the common-area property and violated the rental agreement.

Defendant's contention that she was denied a meaningful opportunity to defend herself is also unpersuasive. There is a material distinction between a litigant being **denied** an opportunity to cross-examine a witness or review evidence and a litigant being **afforded** that opportunity but failing or refusing to exercise it in an orderly manner. Here, Defendant was given the opportunity to cross-examine Plaintiff's sole witness and address the evidence after her arrival. Her own disruptive conduct did not transform those opportunities into a denial of due process or establish prejudice warranting relief under section 473(b).

The Court likewise declines to set aside the jury-waiver determination. Code of Civil Procedure section 631, subdivision (f)(1), provides that a party waives jury trial by failing to appear at trial. Defendant failed to appear at the time set for trial despite having personally received the 10:00 a.m. setting. The Court waited, directed the deputy to look for and call Defendant, and only thereafter found the jury waived and proceeded with the court trial. Defendant has not established grounds warranting discretionary relief from that waiver under section 631, subdivision (g).

Finally, the Court need not resolve the parties' collateral dispute concerning the applicable unlawful-detainer discovery cutoff in order to decide this motion. Even assuming Defendant had timely outstanding discovery or had not received Exhibit 28 before trial, those matters do not establish that her failure to appear at 10:00 a.m. resulted from excusable mistake, surprise, or neglect, nor do they alter the Court's finding that Defendant was afforded an opportunity to confront the witness and evidence after she appeared.

Accordingly, Defendant Jordan Machado's Motion to Set Aside and Vacate Judgment is **DENIED**. The request to set aside the jury-waiver determination is also **DENIED**.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for Plaintiff shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to California Rules of Court, rule 3.1312, and shall provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court. The Court alerts the parties to revised Local Rule 3.403(b)(iv), amended effective January 1, 2024, regarding the wording of proposed orders.

Posted: 3:50 P.M.

